



INDIAN LAW & DEALMAKING · 24 AUGUST 2026

Five moves shaping the board now.

- › SEBI rejects Adani linked fund settlements
- › IHCL and Oriental Hotels merger approval
- › Supreme Court arbitration pre deposit reference
- › Delhi High Court quashes ED ECIR action
- › ED attaches funds in railway bribery probe

SWIPE →



SEBI Rejects Settlements By Adani Linked Funds

SEBI rejected settlement applications from at least three Mauritius based funds invested in Adani Group companies over alleged non disclosures, as reported on 24 August 2026. The funds disagreed with proposed monetary terms and shareholder disclosure requests, pushing the matters toward enforcement proceedings.

THE READ

Expect aggressive enforcement actions and potential license consequences as SEBI bypasses settlement talks. Regulated entities must brace for heightened scrutiny on offshore ownership transparency.



CORPORATE · NCLT

02 / 05

Boards Approve All Stock IHCL Oriental Hotels Merger

The boards of Indian Hotels Company Ltd and Oriental Hotels Ltd approved an amalgamation scheme on 24 August 2026 involving a share swap of 25 IHCL shares for every 117 OHL shares. The transaction requires NCLT sanction under Sections 230 to 232 of the Companies Act with an appointed date of 1 April 2027.

THE READ

Transaction timelines depend heavily on navigating upcoming NCLT and regulatory clearances smoothly. Corporate dealmakers should monitor potential creditor objections during the scheme rollout.



ARBITRATION · SUPREME COURT

03 / 05

Supreme Court Refers Contractor Only Pre Deposit Issue

On 17 August 2026, in Santosh Associate Pvt Ltd v Haryana State Industrial and Infrastructure Development Corporation Ltd, a Supreme Court division bench questioned the validity of unilateral contractor pre deposit clauses. The bench asked the Chief Justice of India to consider a Larger Bench reference regarding clauses that render the right to sue illusory.

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This referral signals imminent judicial pushback against one sided financial barriers in commercial arbitration agreements. Counsel should review dispute resolution clauses to mitigate exposure to similar pre deposit mandates.



CRIMINAL LAW · DELHI HIGH COURT

04 / 05

Delhi High Court Quashes ED ECIR Action

On 18 August 2026, the Delhi High Court set aside ED proceedings and coercive actions against executives linked to the late Mahendra Prasad and Aristo group. Justice Anish Dayal held that the agency could not sustain a PMLA case by adding a six year old FIR through a 2025 addendum after the predicate FIR was cancelled.

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This ruling reinforces strict jurisdictional limits on the ED regarding surviving predicate offences. Defense teams should aggressively challenge PMLA proceedings tied to defunct or cancelled base FIRs.



ED Attaches Assets In Railway Bribery PMLA Case

On 24 August 2026, the Enforcement Directorate provisionally attached movable and immovable assets worth approximately ₹3.50 crore under PMLA in a Northeast Frontier Railway bribery investigation. The attachment involves properties tied to former railway official Ranjit Kumar Borah and contractor entities following a CBI predicate case.

THE READ

Asset attachments highlight ongoing inter agency enforcement targeting proceeds of public sector corruption. Financial intermediaries must maintain robust audit trails to withstand sudden provisional attachment orders.



THE THROUGH-LINE

The legal landscape this week underscores tightening boundaries across regulatory and criminal enforcement. From SEBI rejecting offshore settlements to the Supreme Court questioning restrictive arbitration barriers, authorities and courts are actively testing the limits of unilateral power. Compliance strategies must adapt immediately to these intensifying standards of transparency and fairness.





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